

The order to show cause hearing regarding status of stay currently scheduled for **July 27, 2026 at 3:30 p.m. in Department 40** shall be heard on the same date, time, and department for an order to show cause hearing regarding entry of judgment.

17. S-CV-0056373 City of Lincoln v. Shelgren, Christian A

Petition for order to abate substandard building; appointment of receiver; requiring reimbursement

Petitioner seeks a court order to abate substandard building; order to appointment of receiver; and an order requiring reimbursement.

Petitioner states in the petition that the following parties have a recorded interest in the property and are entitled to notice of hearing: (1) the Placer County Tax Collector; (2) United States of America acting through the Farmers Home Administration, United States Department of Agriculture; and (3) LVNV Funding, LLC. All three are entitled to notice under California Health and Safety Code § 17980.7 (c). (Petition at 6.)

The court previously continued the matter on March 17, 2026, for insufficient notice of hearing on interested parties and lack of proper proof of service of summons for the respondent. After the continuance, petitioner sent notice of hearing to all interested parties but has not filed an amended proper proof of service for the respondent property owner.

A petition to abate substandard building; order to appointment of receiver; and an order requiring reimbursement, when filed in a new action, must be served in the same manner as a summons. (Health & Saf. Code, § 17988; Code Civ. Proc., § 1290.4 (b).) While there is proof of service of summons in the court's file (filed March 3, 2026), it has no name listed under the party served, number 3a. Therefore, there is insufficient proof of service of summons on record for the respondent pursuant to Code of Civil Procedure section 415.10. Given this procedural deficiency, the petition is denied.

The motion on the petition to abate substandard building; order to appointment of receiver; and an order requiring reimbursement is denied, without prejudice, for petitioner to file a proper proof of service of summons for the respondent and serve and file a notice of hearing on the respondent and all interested parties with a new reserved hearing date.

18. S-CV-0056629 Olin, John v. Olin, Allan

The motion to consolidate is dropped from calendar as no moving papers were filed with the court.

19. S-CV-0056807 In Re the Petition of Brooklynn Sanford

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

20. S-CV-0056809 Onesi, Christine v. City of Lincoln

Petitioner is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition for Relief Under the Government Claims Act

Petitioner moves for an order relieving her from the requirements of Government Code section 945.4 on her personal injury claim. Respondent opposes the petition.

Preliminarily, the petition appears to argue both that petitioner timely submitted her claim to the City of Lincoln and that this claim substantially complied with all requirements while also arguing the court should relieve petitioner from submitting her claim to the City of Lincoln because of "mistake, inadvertence, surprise, or excusable neglect." However, it is only the latter issue that is before this court on this petition. This court has no jurisdiction on a petition for relief from the claims presentation requirement to determine whether petitioner's claim was timely or that it substantially complied with all requirements. (*Ngo v. County of Los Angeles* (1989) 207 Cal.App.3d 946, 951.) This court therefore presumes but does not find the claim was untimely and analyzes whether petitioner is entitled to relief from the requirements of Government Code section 945.4. For the same reason, respondent's argument lacks merit that this petition necessarily fails because claim presentation was timely; that issue is not before this court on this petition.

In order to initiate an action for money or damages against public entities, a claim must be presented in accordance with the requirements in Government Code sections 900 and 910. (Gov. Code, § 945.4.) Government Code Section 911.2 provides, "A claim relating to a cause of action for . . . injury to a person . . . shall be presented . . . not later than six months after the accrual of the cause of action." (Gov. Code, § 911.2, subd. (a).) However, if a claim is not timely presented, the injured party may apply to the public entity for leave to present the claim. (*Id.*, § 911.4, subd. (a).) This "application shall be presented to the public entity . . . within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim." (*Id.* at subd. (b).)

If the public entity denies the application for leave to file an untimely claim, the injured party may petition the court for an order relieving him or her of the claim requirements. (*Id.*, § 946.6, subd. (a).) This application "shall be filed within six months after the application to the board is denied or deemed to be denied . . ." (*Id.* at subd. (b).) Government Code section 946.6 is a remedial statute that is to be liberally construed. (See, e.g., *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 273–